OHIO LEGISLATIVE SERVICE COMMISSION

www.lsc.ohio.gov

Office of Research and Drafting

Legislative Budget Office

S.J.R. 10*
136th General Assembly

Resolution Analysis

Click here for S.J.R. 10's Fiscal Note

Version: As Reported by House General Government

Primary Sponsors: Sens. Gavarone and Timken

Emily E. Wendel, Attorney

SUMMARY

- Proposes an amendment to the Ohio Constitution to appear on the ballot in November 2026, to require electors to provide identification (ID) in order to vote.
- Requires an elector to show photo ID when voting in person, provided that the General Assembly may allow an exception for those with a sincere religious objection to being photographed, as under the existing statute.
- Defines "photo identification" to include the same documents as are currently acceptable under the Revised Code.
- Allows the General Assembly to choose whether to require photo ID to vote by mail or to permit the use of a signature and certain nonphoto ID, as the statute currently does.

DETAILED ANALYSIS

The resolution proposes an amendment to the Ohio Constitution to require electors to provide identification (ID) in order to vote, in accordance with laws passed by the General Assembly. If approved, the proposal would not require any changes to Ohio's current voter ID requirements found in statute, but it would limit the extent to which the current requirements could be changed in the future.

The proposal would appear on the ballot at the November 3, 2026, general election. If approved by the electors, it takes effect immediately.

* This analysis was prepared before the report of the House General Government Committee appeared in the House Journal. Note that the legislative history may be incomplete.

In person voting

Photo ID requirement

Under the proposal, Ohio's voter ID laws must include a requirement that an elector show the elector's photo ID in order to vote in person at a polling place or other voting location designated by law. However, if an elector does not have photo ID because the elector has a sincere religious objection to being photographed, the proposal states that the law may provide an alternative method of verifying the elector's identity.[1] Currently, an elector with a religious objection may vote in person by signing an affidavit, providing the last four digits of the elector's Social Security number, and casting a provisional ballot.[2]

The Revised Code allows an elector who does not show photo ID at the time of voting in person to cast a provisional ballot and provide photo ID to the election officials by the fourth day after Election Day for the ballot to be eligible to be counted. The proposal does not require that this procedure remain in statute. But the proposal still might be interpreted to allow provisional voting in this circumstance because an elector who casts a provisional ballot does not actually vote – that is, have the elector's ballot counted – until the elector shows photo ID.[3]

Definition of photo ID

As used in the proposal, "photo identification" means one of the following documents that is issued by an agency of the state or the United States, includes the elector's name and photograph, and is not expired:[4]

- A driver's license or state ID card issued by the Ohio Bureau of Motor Vehicles or its successor agency or a temporary document issued by that agency for an applicant to use while waiting to receive the license or card that contains all the same information;
- A U.S. passport or passport card;
- A U.S. military ID card, an Ohio National Guard ID card, or an ID card issued by the U.S. Department of Veterans Affairs or its successor agency.

These are the same documents that qualify as photo ID for voting purposes under current law.[5]

Voting by mail

The proposal allows the General Assembly to choose whether to require photo ID for voting by mail or to keep Ohio's current system or something similar. Under the proposal, at a minimum, electors who vote other than in person must provide (1) photo ID or (2) if authorized by law, a signature and at least one other unique identifier. "Other unique identifier" means a

[1] Proposed Ohio Constitution, Article V, Section 5(A).

[2] R.C. 3505.18, 3505.181, and 3505.19.

[3] R.C. 3505.18 and 3505.181.

[4] Proposed Ohio Const., art. V, sec. 5(C)(1).

[5] R.C. 3501.01(AA).

unique numeric or alphanumeric descriptor assigned to the elector by the state or the United States or a truncated version of such a descriptor. For example, a driver's license or state ID card number, the last four digits of a Social Security number, or a passport number would qualify as a unique identifier for this purpose.[6]

Under existing law, a voter who votes by mail must provide the voter's name, address, birthdate, and signature and one of the following:

- A driver's license or state ID card number;
- The last four digits of the voter's Social Security number;
- A copy of a photo ID.[7]

For more information about Ohio's current voter ID laws, see LSC's *Members Brief*, "Voter Identification" (PDF).

HISTORY

Action	Date
Introduced	05-19-26
Reported, S. General Government	06-03-26
Adopted by Senate (22-9)	06-03-26
Reported, H. General Government	---

SJR0010RH-136/ks

[6] Proposed Ohio Const., art. V, sec. 5(B) and (C)(2).

[7] R.C. 3509.05(B) and 3511.09(B).